

HOUSE No. 1532

The Commonwealth of Massachusetts

PRESENTED BY:

Bradley H. Jones, Jr.

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act establishing a commission to study the impact of shifting residential broker fees from tenants to landlords.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	DATE ADDED:
<i>Bradley H. Jones, Jr.</i>	<i>20th Middlesex</i>	<i>1/17/2025</i>
<i>Kimberly N. Ferguson</i>	<i>1st Worcester</i>	<i>1/17/2025</i>
<i>Paul K. Frost</i>	<i>7th Worcester</i>	<i>1/31/2025</i>
<i>Todd M. Smola</i>	<i>1st Hampden</i>	<i>3/10/2025</i>
<i>David K. Muradian, Jr.</i>	<i>9th Worcester</i>	<i>1/29/2025</i>

HOUSE No. 1532

By Representative Jones of North Reading, a petition (accompanied by bill, House, No. 1532) of Bradley H. Jones, Jr., and others for an investigation by a special commission (including members of the General Court) relative to the impact of shifting residential broker fees from tenants to landlords. Housing.

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act establishing a commission to study the impact of shifting residential broker fees from tenants to landlords.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Notwithstanding any general or special law to the contrary, there shall be a
2 special commission to study and provide recommendations on the potential economic and social
3 impacts of shifting the responsibility of paying real estate broker fees from tenants to landlords
4 in residential leasing transactions within the Commonwealth of Massachusetts.

5 The commission shall investigate and document the following: (1) the economic burden
6 on landlords and tenants resulting from such a policy change; (2) the effects on the rental
7 housing market, including affordability, availability, and stability; (3) the impacts on real estate
8 brokerage practices and fees; (4) comparisons with jurisdictions that have implemented similar
9 policies; and (5) any anticipated legal, regulatory, or practical challenges.

10 SECTION 2. The commission shall consist of the secretary of housing and livable
11 communities, or a designee, who shall serve as chair; 1 member of the house of representatives

12 appointed by the speaker of the house of representatives; 1 member of the senate appointed by
13 the president of the senate; 1 member of the house of representatives appointed by the minority
14 leader of the house of representatives; 1 member of the senate appointed by the minority leader
15 of the senate; 2 members appointed by the governor, 1 of whom shall represent the
16 Massachusetts Association of Realtors, and 1 of whom shall represent a tenant advocacy
17 organization; and one economist with expertise in housing policy, to be appointed by the
18 governor.

19 SECTION 3. The executive office of housing and livable communities shall provide
20 technical and administrative support to the commission. The commission shall hold at least 3
21 public hearings in geographically diverse regions of the commonwealth to solicit feedback from
22 tenants, landlords, brokers, and other stakeholders.

23 SECTION 4. The commission shall file its report, including its findings and
24 recommendations, along with any drafts of proposed legislation, with the clerks of the house of
25 representatives and the senate, the house and senate committees on ways and means, and the
26 joint committee on housing no later than 12 months after the effective date of this act.